



SPONSOR: Sen. Wilson & Rep. D. Short
Sen. Lawson; Rep. Dukes

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 114

AN ACT TO AMEND TITLES 10, 22, AND 29 OF THE DELAWARE CODE RELATING TO REAL PROPERTY ACQUISITION AND THE EXERCISE OF EMINENT DOMAIN.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

Section 1. Amend § 6105, Title 10 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 6105. Complaint; parties.

(a) A complaint filed under this chapter ~~shall~~ must contain a caption as provided in Rule 10(a) of the Rules of Civil Procedure for the Superior Court, ~~except that~~ but the plaintiff shall name as defendants the property, designated generally by kind, quantity, and location, and at least ~~one~~ 1 of the owners of some part of or interest in the property.

(b) The complaint ~~shall~~ must contain a short and plain statement of ~~the authority~~ all of the following:

(1) The authority for the taking, the taking.

(2) The use for which the property is to be taken consistent with § 9501A of Title 29, the Title 29.

(3) The plaintiff's compliance with § 9505(15) of Title 29, a Title 29.

(4) If the plaintiff is a municipality, the plaintiff's compliance with §120 of Title 22.

(5) A description of the property sufficient for its identification, the identification.

(6) The interest to be acquired, and, as acquired.

(7) As to each separate piece of property, a designation of the defendants who have been joined as owners thereof of the property or of some interest therein. in the property.

Section 2. Amend Chapter 1, Title 22 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 120. Real property acquisition and eminent domain.

(a) For purposes of this section:

(1) "Land" means real property that a municipality plans to acquire by eminent domain.

(2) "Owner" means a person who owns land.

(3) “Public use” means as defined in § 9501A of Title 29. But “public use” does not include recreational purposes.

(4) “Recreational purpose” means as defined in § 5902 of Title 7.

(b)(1) Whenever a municipality uses eminent domain to acquire real property, the municipality shall comply with Chapter 95 of Title 29 and this section.

(2) A municipality may not use eminent domain to acquire real property for recreational purposes.

(c)(1) Before a municipality uses eminent domain to acquire real property, the municipality shall hold a public hearing on the municipality’s planned use of eminent domain. At least 10 days before the date of the public hearing, the municipality shall give notice of the public hearing as follows:

a. By publishing an advertisement in a newspaper of general circulation in the municipality or in the county in which the municipality is located.

b. If the owner can be identified, by mailing written notice by certified mail to the owner.

(2) The notice required by paragraph (c)(1) of this section must include all of the following information:

a. A description of the land.

b. The public use for the land.

c. The time and place for the public hearing.

(3) At the public hearing, a municipality shall explain all of the following:

a. The public use for the land.

b. The reason for choosing the land for the public use.

c. The right of each owner to receive just compensation under Chapter 95 of Title 29.

d. The right of each owner to negotiate, including the right to accept or reject the offer of just compensation required by Chapter 95 of Title 29.

(4) The municipality shall allow public comment at the public hearing and the municipality shall consider any objection raised at the public hearing.

Section 3. Amend § 9501A, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 9501A. Acquisition by eminent domain.

(f) Whenever a municipality exercises eminent domain, the municipality shall comply with § 120 of Title 22.

Section 4. This Act applies to condemnation proceedings filed after the Act’s enactment into law.

SYNOPSIS

This Act requires a municipality to comply with all limitations and requirements contained in Chapter 95 of Title 29 and § 120 of Title 22 whenever the municipality uses eminent domain to acquire real property. This Act prohibits a municipality from using eminent domain to acquire real property for recreational use.

Additionally, a municipality shall hold a public hearing before using eminent domain to acquire real property. A municipality shall give notice of the public hearing at least 10 days prior to the date of the public hearing by doing all of the following:

- Publishing an advertisement in a newspaper of general circulation in the municipality or in the county in which the municipality is located.

- If the owner can be identified, by mailing written notice by certified mail to the owner of the real property the municipality plans to acquire by eminent domain.

The required notice must include all of the following information:

- A description of the real property to be acquired.

- The public use for which the real property is to be acquired.

- The time and place for the public hearing.

At the public hearing, all of the following must be explained:

- The public use for the real property is to be acquired.

- The reason for choosing the real property for the public use.

- The right of each owner of the real property to receive just compensation under Chapter 95 of Title 29.

- The right of each owner of the real property to negotiate, including the right to accept or reject the offer of damages required under Chapter 95 of Title 29.

Public comment must be allowed at the public hearing and any objection raised at the public hearing must be considered.

This Act also updates the condemnation procedure in Chapter 61 of Title 10 to require a municipality bringing a condemnation action to show compliance with the public hearing requirement in § 120 of Title 22 in its complaint.

This Act applies to condemnation proceedings filed after the Act's enactment into law.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

This Act requires a greater than majority vote for passage because § 1 of Article IX of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend a municipal charter, whether directly, by amendment to a specific municipality's charter, or, as in this Act, indirectly, by a general law.

Author: Senator Wilson